Arun Kumar vs The State (Govt. Of Nct Of Delhi) on 12 September, 2022

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1003/2022
   ARUN KUMAR
                    Through: Mr.Abid Ibrahim with M
                             Kalam Yusuf, Advoca
                    versus
   THE STATE (GOVT. OF NCT OF DELHI)
                    Through: Mr.Amit Sahni, APP for
                             with SI Sandeep Yad
                             Vihar.
   CORAM:
   HON'BLE MR. JUSTICE YOGESH KHANNA
                    ORDER

% 12.09.2022

1. The petitioner is in custody since 22.09.2018 i.e. approx. since last four years. The FIR initially was lodged under Section 363 IPC by the parents of the prosecutrix as she was missing.

2. Later during the investigation it was found on 28.06.2018 she married the applicant at Arya Samaj Temple situated at Village Navada, Shiv Mandir, Greater Noida, UP. Thereafter, they both surrendered before the Court of learned MM, Dwarka Court. The statement of the prosecutrix was recorded under Section 164 Cr.P.C. and also under Section 161 Cr.P.C. which statement she gave in favour of the accused/applicant.

3. However, later she changed her statement and hence the accused was arrested on 22.09.2018 and is in custody since then.

4. It is the submission of learned counsel for the petitioner there is a marriage certificate on record annexed as Annexure P4, which shows her age to be 18½. However, learned APP for the State claim the age of the prosecutrix was 16 years and 3 months at that time.

5. It is further submitted by learned counsel for the petitioner if a marriage is performed with minor, such marriage is only voidable in nature per Section 12 of Hindu Marriage Act, at the option of the minor in case it is proved by her the consent of the minor or the consent of her guardian in the marriage was obtained by force or by fraud as to the nature of the ceremony or as to the material fact or circumstance concerning the person. It is submitted marriage has not been challenged by the

prosecutrix uptil now. Heard.

6. Considering the fact the prosecutrix gave a statement in favour of the petitioner and also the petitioner being in custody since 22.09.2018 for a fairly long period and the trial will take time to conclude, the applicant is admitted to bail on his executing a personal bond of Rs.20,000/- with one surety of the like amount to the satisfaction of the learned Trial Court/Duty MM.

7. The applicant is directed to furnish his contact details/address to the Investigating Officer and shall keep his mobile location app open at all time.

8. The applicant/petitioner will not contact or threaten the witnesses in any manner, lest it shall be a ground for cancellation of bail.

9. The application stands disposed of in above terms.

10. Copy of this order be sent electronically to the learned Trial Court / Jail Superintendent for information and compliance.

11. Order dasti.

YOGESH KHANNA, J.

SEPTEMBER 12, 2022 VLD